

MSME REGISTRATION & SUPPLIER PARTICIPATION AGREEMENT

JSG SMILE – Jharsuguda Supplier & MSME Integrated Local Exchange

Website: www.jsghsmile.in

Effective Date: [DD/MM/YYYY]

MSME REGISTRATION & SUPPLIER PARTICIPATION AGREEMENT

This MSME Registration & Supplier Participation Agreement (“Agreement”) governs the registration, participation, product/service listing, quotation submission, order execution, and business transactions conducted by Suppliers through JSG SMILE (www.jsghsmile.in).

JSG SMILE is a procurement facilitation platform established under the guidance of the District Industries Centre (DIC), Jharsuguda, Government of Odisha, to promote procurement opportunities for MSMEs operating within Jharsuguda District.

By registering on the Portal, the Supplier agrees to be legally bound by this Agreement, the Portal Terms & Conditions, Privacy Policy, Payment Policies, and all other applicable Portal policies.

1. OBJECTIVE

The objective of this Agreement is to facilitate business opportunities for MSMEs by enabling them to:

- Showcase products and services.
 - Receive procurement enquiries.
 - Participate in RFQs.
 - Submit quotations.
 - Receive purchase orders.
 - Track transactions and payments.
 - Connect with large buyers and institutions.
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2. ELIGIBILITY

To register as a Supplier on JSG SMILE, the Applicant must:

Mandatory Requirements

- Be located within Jharsuguda District.
- Be legally operating in India.
- Possess a valid PAN.
- Maintain an active bank account.
- Possess applicable licenses and registrations.

Preferred Registrations

- Udyam Registration
- GST Registration
- Startup Recognition
- Industry Certifications
- Quality Certifications

The Portal reserves the right to define eligibility criteria from time to time.

3. DOCUMENTS REQUIRED

The Supplier may be required to submit:

Organization Documents

- Udyam Registration Certificate
- PAN Card
- GST Registration Certificate
- Certificate of Incorporation/Registration
- Trade License (where applicable)
- Factory License (where applicable)

Banking Documents

- Cancelled Cheque
- Bank Verification Documents
- Account Holder Details

Authorized Representative

- Aadhaar/Identity Proof

- Mobile Number
- Email Address
- Authorization Letter (if applicable)

The Portal may request additional documents for verification purposes.

4. REGISTRATION AND VERIFICATION

4.1 Registration shall be subject to verification.

4.2 The Portal may:

- Verify submitted documents.
- Conduct physical verification where required.
- Request clarification or additional information.
- Approve, reject, suspend, or revoke registration.

4.3 Registration approval does not constitute endorsement or certification by the Portal.

5. SUPPLIER PROFILE

The Supplier may maintain a profile containing:

- Organization Details
- Product Categories
- Service Offerings
- Capacity Information
- Certifications
- Contact Details
- Portfolio Information

The Supplier shall ensure that all information remains accurate and updated.

6. PRODUCT AND SERVICE LISTINGS

The Supplier may list products and services on the Portal.

The Supplier shall ensure that all listings:

- Are accurate.
- Are lawful.
- Are not misleading.
- Do not infringe third-party rights.

The Portal reserves the right to remove or suspend any listing without prior notice.

7. RFQ PARTICIPATION

The Supplier may:

- View procurement requirements.
- Participate in RFQs.
- Submit quotations.
- Respond to buyer enquiries.

Submission of quotations does not guarantee award of business.

The Buyer shall independently evaluate quotations.

8. ORDER ACCEPTANCE

The Supplier shall:

- Carefully review purchase orders.
- Accept only executable orders.
- Honor accepted commitments.

Once accepted, the Supplier shall make reasonable efforts to fulfill obligations in accordance with agreed terms.

9. DELIVERY OBLIGATIONS

The Supplier shall:

- Deliver products/services as agreed.
- Meet quality specifications.
- Follow applicable safety and regulatory requirements.

- Maintain proper documentation.

The Supplier remains solely responsible for delivery performance.

10. PRODUCT QUALITY RESPONSIBILITY

The Supplier shall be solely responsible for:

- Product quality.
- Service quality.
- Product specifications.
- Compliance certifications.
- Product safety.
- Packaging standards.
- Warranty obligations.
- After-sales service.

The Portal shall not verify or guarantee product quality.

11. PAYMENT FACILITATION

Where enabled, JSG SMILE may provide integrated payment gateway facilities.

Payment Process

1. Buyer places order.
2. Buyer completes payment through approved payment mechanism.
3. Transaction is recorded on the Portal.
4. Delivery/service completion is confirmed.
5. Settlement is processed.

T+1 Settlement

Settlement may generally be processed on a T+1 basis following transaction completion and confirmation, subject to:

- Banking timelines
- Payment gateway processing
- Regulatory requirements
- Compliance verification

The Portal does not guarantee settlement timelines.

12. BANK ACCOUNT VALIDATION

The Supplier shall ensure:

- Correct bank account details.
- Accurate beneficiary information.
- Updated banking records.

The Portal shall not be responsible for losses caused by incorrect banking information submitted by the Supplier.

13. TAXATION

The Supplier shall be solely responsible for:

- GST compliance
- Tax invoices
- Income tax obligations
- TDS reconciliation
- Regulatory filings
- Statutory compliance

The Portal shall not provide tax advice.

14. REFUNDS, RETURNS AND DISPUTES

Any refund, return, replacement, warranty claim, or commercial dispute shall be resolved directly between Buyer and Supplier.

The Portal may provide communication support but shall not adjudicate disputes.

15. CONFIDENTIALITY

The Supplier shall keep confidential:

- Buyer information
- Procurement requirements
- Commercial discussions
- Pricing details
- Business information

Unauthorized disclosure is prohibited.

16. FRAUD PREVENTION

The Supplier shall not:

- Submit false documents.
- Misrepresent products.
- Misrepresent certifications.
- Engage in fraudulent transactions.
- Manipulate quotations.
- Create duplicate accounts.

The Portal reserves the right to report suspected fraud to competent authorities.

17. RATINGS AND FEEDBACK

The Portal may provide a rating and feedback mechanism.

The Supplier acknowledges that:

- Buyers may submit reviews.
- Performance indicators may be displayed.
- Ratings may influence visibility.

The Portal shall not guarantee any specific ranking or visibility.

18. SUSPENSION AND BLACKLISTING

The Portal may suspend, restrict, or blacklist Suppliers for:

- Fraudulent activities.

- False documentation.
- Misleading product information.
- Repeated order defaults.
- Legal violations.
- Misuse of the Portal.

Such action may be taken without prior notice where necessary.

19. DISCLAIMER

The Supplier acknowledges that:

- JSG SMILE is only a facilitation platform.
- The Portal does not guarantee orders.
- The Portal does not guarantee buyer payments.
- The Portal does not guarantee business opportunities.
- The Portal does not guarantee revenue generation.

Participation on the Portal is entirely voluntary.

20. LIMITATION OF LIABILITY

District Administration Jharsuguda, District Industries Centre (DIC), Government of Odisha, Technology Partner, Portal Operator, and their officers shall not be liable for:

- Loss of business.
- Loss of profits.
- Buyer defaults.
- Payment delays.
- Commercial disputes.
- Product returns.
- Warranty claims.
- Consequential damages.

Maximum liability shall be NIL to the fullest extent permitted under applicable law.

21. INDEMNITY

The Supplier agrees to indemnify and hold harmless:

- District Administration Jharsuguda
- District Industries Centre (DIC)
- Government of Odisha
- Technology Partner
- Portal Operator

against any claims, liabilities, damages, penalties, losses, legal expenses, or proceedings arising from:

- Supplier products.
 - Supplier services.
 - Regulatory violations.
 - Intellectual property infringement.
 - Product defects.
 - Contractual disputes.
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22. GOVERNING LAW

This Agreement shall be governed by the laws of India.

23. JURISDICTION

Any legal proceedings arising under this Agreement shall be subject to the exclusive jurisdiction of competent courts located in Odisha.

24. MODIFICATION OF AGREEMENT

The Portal reserves the right to amend this Agreement from time to time.

Continued use of the Portal shall constitute acceptance of revised terms.

25. DECLARATION AND ACCEPTANCE

By selecting “I Agree”, registering on JSG SMILE, uploading documents, listing products/services, submitting quotations, accepting orders, receiving payments, or otherwise using the Portal, the Supplier declares that:

1. All information submitted is true and accurate.
2. The organization is legally authorized to conduct business.
3. The applicant is authorized to represent the organization.
4. The Supplier has read and understood this Agreement.
5. The Supplier agrees to comply with all Portal policies and applicable laws.